

26STUD00504 26STUD00504

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 26STUD00504 Hearing Date: August 14, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

14, 2026

CASE NAME: Robert

Vasquez v. Juan Ignacio Castro Diaz

CASE NO.: 26STUD00504

MOTION

FOR SUMMARY JUDGMENT/SUMMARY ADJUDICATION

MOVING PARTY: Plaintiff

Robert Vasquez

RESPONDING PARTY(S): Defendant Juan Ignacio Castro

Diaz

REQUESTED RELIEF:

1. An

order granting summary judgment for possession of the property located at 981

Montecito Ave., Los Angeles, CA 90031 in favor of Plaintiff;

2. An
order striking Defendant's answer.

TENTATIVE RULING:

1. Motion
for summary judgment is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On January 16, 2026, Plaintiff Robert Vasquez (Plaintiff) filed an unlawful detainer complaint against Defendant Juan Ignacio Castro Diaz (Defendant). Plaintiff alleges he is the owner of the premises located at 981 Montecito Drive, Los Angeles, CA 90031 and that Defendant is an occupant of the premises.

On January 30, 2026, Defendant filed an answer.

On March 9, 2026, the court called the matter for non-jury trial. Per the request of the parties, the court set a mandatory settlement conference for March 23, 2026.

On April 20, 2026, the court called the matter for a jury trial. After conferring with the parties, the court continued the trial to May 12, 2026.

On May 11, 2026, Defendant filed a motion for leave to amend his answer which the court GRANTED.

On May 12, 2026, Defendant filed an amended answer to the complaint.

On May 12, 2026, the court called the matter for jury trial. Pursuant to oral stipulation, the court continued trial to June 4, 2026.

On June 1, 2026, Plaintiff filed the instant motion for summary judgment (MSJ).

On June 4, 2026, the court called the matter for jury trial. Per Plaintiff's request, the court continued the trial to June 29, 2026.

On June 8, 2026, the court found this matter related to Case No. 25STCV33409 and designated that case as the lead case. All hearings were placed off calendar and the matter was transferred to Dept. 511.

On June 9, 2026, the court called Plaintiff's MSJ for hearing. Plaintiff did not appear. Defendant appeared. After conferring with counsel, the court set a trial setting conference and a MSJ setting conference for June 24, 2026.

On June 24, 2026, the court set a non-jury trial for August 10, 2026, a final status conference for July 30, 2026, and the MSJ for July 30, 2026. Defendant's opposition to be filed and served no later than July 16, 2026. Plaintiff's reply to be filed and served no later than July 23, 2026.

On July 24, 2026, Defendant filed a late opposition.[1]

On July 27, 2026, Plaintiff filed a Reply.

On July 30, 2026, the court continued the MSJ to August 11, 2026 at 9:00 am.

On August 11, 2026, the court trailed the matter behind the related trial in 25STCV33409.

On August 12, 2026, after the related trial continued, the court set the hearing date on the motion and ordered the parties to personally appear on August 14, 2026 at 9:00 a.m.

LEGAL STANDARD:

In unlawful detainer actions, Code of Civil Procedure (CCP) § 1170.7 provides that "A motion for summary judgment may be made at any time after the answer is filed upon giving five days notice. Summary judgment shall be granted or denied on the same basis as a motion under Section 437c."

Under CCP section 437c(p)(1), a plaintiff or cross-complainant has the initial burden on summary judgment or adjudication of showing that there is no defense to a cause of action if that party has proved

each element of the cause of action entitling the party to judgment on that cause of action. Once that burden is met, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.

On summary judgment, the issues are defined by the pleadings. (See *Physicians Comm. For Responsible Medicine v. McDonald's Corp.* (2010) 187 Cal.App.4th 554, 568 ["the issues framed by the pleadings are the only issues a motion for summary judgment must address."]; *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 382-383; *Jordan-Lyon Prods., ITD., v. Cineplex Odeon Corp.* (1994) 29 Cal.App.4th 1459, 1472; *Bostrom v. County of San Bernardino* (1995) 35 Cal. App. 4th 1654, 1663; 580 *Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 14, 18 [burden to address theories "reasonably contemplated by the opponent's pleading"]; *Melican v. Regents of Univ. of Cal.* (2007) 151 Cal. App. 4th 168, 182 [not requiring party to negate an unstated claim].)

Courts cannot decide summary judgment or adjudication motions based upon credibility. (*AARTS Prods., Inc. v. Crocker Nat'l Bank* (1986) 179 Cal.App.3d 1061, 1064 ["[T]he role of the court in summary judgment proceedings is not to weigh the evidence, but to determine whether there exists a triable issue of material fact."]; *Habitat Trust for Wildlife, Inc. v. City of Rancho Cucamonga* (2009) 175 Cal. App. 4th 1306, 1342.) That said, the affidavits and declarations of the moving party are strictly construed and those of the opponent are liberally constructed. (*Howe v. Pioneer Mfg Co.* (1968) 262 Cal. App. 2d 330, 336-37.)

ANALYSIS:

Plaintiff contends summary judgment is appropriate because he is the property owner, provided 60-day notice to quit to Defendant, Defendant is an occupant and not a tenant, and it is inappropriate to litigate title issues in this action. Plaintiff also contends that Defendant has no viable defense because he is not a tenant.

Civ. Code § 789 provides: "A tenancy or other estate at will, however created, may be by the landlord's giving notice in writing to the tenant, in the manner prescribed by Section of the Code of Civil Procedure, to remove from the premises within a period of not less than 30 days, to be specified in the notice."

Here, Plaintiff established he is entitled to a Judgement for Possession. First, he provided evidence that he owns the property. (Declaration of Robert Vasquez (Vasquez Decl.) ¶¶ 3, 4, 5, 6, 11; Exhibits 1 [trust excerpt], 2 [recorded change of trustee], 3 [recorded deed].) Second, he provided evidence that Plaintiff is living at the property. (Id. at ¶¶ 7, 13.) Third, he provided evidence that Plaintiff is an occupant, not a tenant. (Id. at ¶ 11.) Fourth, he provided evidence of serving a notice to quit on Defendant. (Id. at ¶ 12; Declaration of Michael J. Klosk ¶¶ 4, 5, 6; Exhibit 1 [60-day notice to quit], 3 [letter to Defendant].)

Defendant principally contends that Plaintiff's ownership is disputed and that this unlawful detainer action should be stayed pending resolution of the parties' related action, Case No. 25STCV33409 (Quiet Title Action).[2]

The court did trail this matter until conclusion of that trial on the merits. Defendant did not prevail. As such, now, no issues of title remain. Thus, for purposes of this action, Plaintiff has presented evidence establishing his present right to possession, and Defendant's competing claims concerning title do not create a triable issue material to that determination.

Defendant also contends that his payment of property taxes, utilities, and expenses created a tenancy and that Plaintiff subsequently waived termination of that tenancy by accepting such payments. The opposition, however, presents no competent evidence of an agreement between Plaintiff and Defendant that Defendant would pay those expenses as consideration for the right to occupy the property. Defendant's assertion in his memorandum that Plaintiff "required" him to pay the property taxes is not supported by a declaration establishing such an agreement. Evidence that Defendant paid expenses associated with the property, without evidence that Plaintiff agreed to accept those payments as rent or other consideration for continued occupancy, does not create a triable issue as to the existence of a tenancy or waiver.

Defendant's opposition does not create a triable issue of material fact. Defendant's challenge to Plaintiff's title is not properly adjudicated in this unlawful detainer action and remains for determination, as appropriate, in the related action. Nor has Defendant presented competent evidence establishing a tenancy or other agreement permitting his continued occupancy. Accordingly, Defendant has failed to demonstrate a triable issue concerning Plaintiff's present right to possession.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
for summary judgment is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 13, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]
Although Defendant's opposition was untimely,
the court has exercised its discretion to consider the opposition and
Plaintiff's reply on the merits.

[2]In
any event, the court conducted trial on the title issued on August 11, 2026 and
August 12, 2026. Thereafter, the court entered judgment against Juan Ignacio
Castro Diaz who is the Defendant in this matter but was the Plaintiff in the Quiet
Title Action.